

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Plaintiff designates
New York County as the
place of trial

----- X
SHAKIMA BARNES,

Plaintiff,

Basis of venue is
county of occurrence

-against-

SUMMONS

THE CITY OF NEW YORK,
NYPD OFFICER KEITH GONZALEZ and
NYPD UNDERCOVER OFFICER
SHIELD NO. 219,

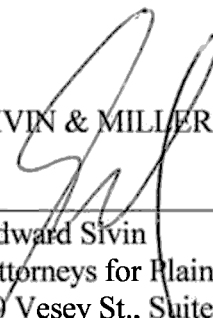
Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 28, 2019

SIVIN & MILLER, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York: c/o NYC Corporation Counsel, 100 Church St., New York, NY 10007

-NYPD Officer Keith Gonzalez: (Shield No. 5897)
c/o NYPD Vice Enforcement, Zone One, 3280 Broadway, New York, NY 10027

-NYPD Undercover Officer Shield No. 219
c/o NYPD Vice Enforcement, Zone One, 3280 Broadway, New York, NY 10027

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
SHAKIMA BARNES,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER KEITH GONZALEZ and
NYPD UNDERCOVER OFFICER
SHIELD NO. 219,

Defendants.

----- X

Plaintiff, by her attorneys SIVIN & MILLER, LLP, as and for her complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Bronx, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action, and within ninety (90) days of the accrual of the causes of action, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.
4. That at all times herein mentioned, the City operated, controlled, managed, and

maintained The New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, NYPD Officer Keith Gonzalez (hereinafter "Gonzalez") was and is a police officer employed by the NYPD.

6. That at all times herein mentioned, Gonzalez was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Gonzalez was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Undercover Officer Shield No. 219 (hereinafter UC219) was and is a police officer employed by the NYPD.

10. That at all times herein mentioned, UC219 was acting within the course and scope of his employment with the NYPD.

11. That at all times herein mentioned, UC219 was acting under color of state law.

THE FACTS

12. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

13. That on or about February 23, 2018, inside 500 East 62nd Street, New York, NY, NYPD officers, including but not limited to Gonzalez, forcibly detained, arrested, and imprisoned plaintiff without a warrant, without probable cause to believe that plaintiff had committed or was about to commit a crime, and without otherwise being justified.

14. That during the course of this forcible detention, plaintiff was searched without her consent and again without probable cause or other justification.

15. That the improper detention, arrest, search, and imprisonment of plaintiff were based, in part, on statements made by UC219 to fellow police officers that were false and that UC219 knew were false.

16. That following her arrest, plaintiff was forcibly confined and imprisoned at various other locations, including a police precinct.

17. That on or about February 24, 2018, NYPD officers, including but not limited to Gonzalez and UC219, initiated and/or caused to be initiated a prosecution of plaintiff, charging plaintiff with a crime of which she was innocent and of which defendants did not have probable cause to believe plaintiff was guilty.

18. That in support of the aforementioned prosecution, Gonzalez issued a Desk Appearance Ticket to plaintiff, compelling plaintiff in court at a later date.

19. That on or about March 22, 2018, Gonzalez continued the prosecution of plaintiff by executing a Criminal Court Complaint in which he again charged plaintiff with a crime of which she was innocent and of which defendants did not have probable cause to believe plaintiff was guilty.

20. That on or about April 25, 2018, in further support of the aforementioned prosecution, UC219 executed a Supporting Deposition in which he accused plaintiff of a crime of which she was innocent and of which defendants did not have probable cause to believe plaintiff was guilty.

21. That in support of the aforementioned prosecution, Gonzalez and UC219 knowingly conveyed false information and statements to fellow officers and to the Office of the District Attorney, and knowingly withheld exculpatory evidence from fellow officers and from the Office of the District Attorney.

22. That the aforementioned false information and statements provided by Gonzalez and UC219, and the exculpatory evidence withheld by Gonzalez and UC219, constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

23. That as a result of aforementioned actions by defendants, plaintiff was compelled to appear in court on several occasions and sustained a deprivation of her liberty and her right to travel.

24. That on or about August 14, 2018, all charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

25. That the aforementioned actions of Gonzalez, UC219, and the other NYPD officers were malicious and intentional in nature.

26. That as a result of the foregoing, plaintiff suffered physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of her liberty and freedom, incurred and will continue to incur economic loss, and was otherwise damaged.

27. That all of the causes of action asserted herein fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(State Law Claim for False Arrest/Imprisonment)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforesaid actions by Gonzalez, UC219, and the other NYPD officers constitute a false arrest and false imprisonment under New York State law, for which Gonzalez, UC219, and the other officers are liable and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST GONZALEZ and UC219

(False Arrest Under 42 U.S.C. § 1983)

30. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

31. That the aforesaid actions by Gonzalez and UC219 constitute a false arrest and false imprisonment and a seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(State Law Claim for Malicious Prosecution)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforesaid actions by Gonzalez, UC219, and the other NYPD officers constitute a malicious prosecution under New York State law, for which Gonzalez, UC219, and the other NYPD officers are liable and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST GONZALEZ and UC219

(Malicious Prosecution Under 42 U.S.C. § 1983)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforesaid actions by Gonzalez and UC219 constitute a malicious prosecution and a seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST GONZALEZ and UC219

(Denial of Right to Fair Trial Under 42 USC Section 1983)

36. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

37. That the aforesaid actions by Gonzalez and UC219 in withholding exculpatory evidence and in making false statements and conveying false evidence to fellow officers and to the District Attorney in support of plaintiff's prosecution constituted a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

38. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

39. That the aforesaid actions by Gonzalez and UC219 and the other involved NYPD officers, and the resulting injuries to plaintiff, followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of Gonzalez, UC219, and the other NYPD officers.

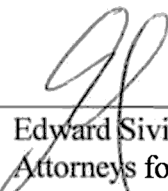
WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Gonzalez and UC219, and attorney's fees against defendants Gonzalez and UC219 pursuant to 42 USC § 1988, and plaintiff also demands the costs

and disbursements of this action.

Dated: New York, New York
January 28, 2019

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

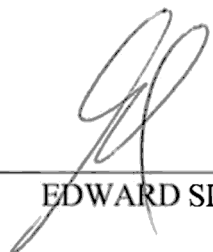
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
January 28, 2019



EDWARD SIVIN

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Year 2019

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COUNTY OF NEW YORK

SHAKIMA BARNES,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. al.,

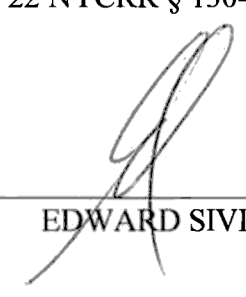
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
January 28, 2019